

3.	24CV0934	METCALF et al v. YANASA et al
Motion for Leave to File First Amended Complaint		

Plaintiffs bring a Motion for Leave to File First Amended Complaint (“Motion”) pursuant to Code of Civil Procedure §§ 473. The Complaint was filed on May 7, 2024. The proposed First Amended Complaint (“FAC”) seeks to add an additional Plaintiff¹ and remove two Defendants. The parties have conducted written discovery and participated in mediation. Trial is scheduled for January 2027. The Motion does not comply with Local Rule 7.10.05, nor does the Motion comply with California Rules of Court, Rule 3.1324. Repeated failure to comply with the requirements of the Local Rules and Rules of Court may result in sanctions, pursuant to Local Rule 7.12.13.

Defendants argue that the Motion should be denied based on lack of standing and absence of a duty. Those arguments may be valid, but do not need to be addressed as part of this Motion.

Pursuant to Code of Civil Procedure §§ 473 and in light of the liberal policy favoring amendment, Plaintiff’s Motion is granted. In compliance with Rule 3.1234, Plaintiff is ordered to file an Amended Declaration, including a redline copy of the proposed FAC.

TENTATIVE RULING #3: PLAINTIFF’S MOTION FOR LEAVE TO AMEND IS GRANTED, CONDITIONAL UPON THE FILING OF AN AMENDED DECLARATION AS OUTLINED ABOVE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG

¹ Page 3, line 28 indicates that proposed Plaintiff Danny Brett Hall is *defendant* Andrew Horvath’s son. However, the Court notes that Andrew Horvath is a Plaintiff, not a Defendant in the action. Further, page 3, line 28 through page 4, line 1 states “Danny Brett Hall” but all further references state “Brett Hall.” Plaintiff’s Motion and proposed FAC are unclear as to the proper name.

April 10, 2026
Dept. 9
Tentative Rulings

**CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED.
PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**